TOWNSHIP OF LINCOLN
CLARE COUNTY, P.O. BOX 239
LAKE GEORGE, MI 48633

Supervisor, Dennis Zimmerman
Clerk, Carol Majewski
Treasurer, Maggie Carey
Trustee, Jerry Bridges
Trustee, Mike Tobin

Lincoln Township Zoning Board of Appeals
Regular Meeting
Wednesday, May 13, 2015

The meeting was called to order by Chair Godau at 7:00 pm.

Roll Call:
Present – Chair Godau, Vice-Chair Swanson, Secretary Engelhardt, Bridges, Smith, Zoning Administrator Carey, Building Inspector Mantei, Recording Secretary Sherrod, Alternate McCaslin
Absent – Szczepanski, excused
Public – 5 – Mike & Mickey DeNoyer, Mr. & Mrs. Frank Tragis, and GregTragis

Approval of Minutes:
Regular Meeting minutes of April 8, 2015 – It was moved by Bridges and seconded by Engelhardt to accept the minutes of the Annual Meeting as presented.

Approval of the LandPlan Meeting minutes of February 23, 2015, and April 27, 2015 was tabled.

Conflict of Interest Statement (Declare and Cite): No conflict of interest was stated.

General Comments by Chair: Chair Godau advised that Lincoln Township is a zoned township, of only six in Clare County. It is important for people who move into the township to understand that Lincoln is zoned and how the boards are selected or elected and the structure under which those boards operate.
He explained that the ZBA is not a political structure, but one of appointment. He went on to explain about what a variance involves and how the zoning

administrator deals with the steps of zoning permits, building permits, and then the process in which a permit is denied. He also explained the roles of the zoning administrator and the building inspector. The decision of the zoning board of appeals shall be final.

A party aggrieved by the decision may appeal to the circuit court of Clare County within whichever of the following deadlines comes first:

a. Thirty days after the zoning board of appeals issues its decision in writing signed by the chairperson, if there is a chairperson, or signed by the members of the zoning board of appeals, if there is no chairperson.
b. Twenty-one days after the zoning board of appeals approves the minutes of its decision.

Purpose: Chair Godau read the following information: This is a variance request by Allstate Sign Co., Inc. pertaining to the future Dollar General Store located at the SW corner of Arthur Rd. and Lake George Ave., Lake George, MI 48633, where as a Variance is requested to exceed dimensional and height limits for signs as permitted in Section 1517 of the Lincoln Township Zoning Ordinance. The notice of this variance was published in the *Clare County Cleaver* on April 30, 2015, in accordance with the Michigan Zoning Enabling Act 2006. Notifications were sent to all property owners within 300 feet of the property for the purpose of public comment being made to the ZBA. The public hearing information was also posted at the township hall and on the township's website in the calendar of events.

Brief Explanation of the Rules: Chair Godau explained that variance requests are submitted by the persons making the request. The Lincoln Township Board of Appeals must follow the variance standards created by Michigan Statute. These provide that the ZBA must determine that a Practical Difficulty exists in order to grant a variance. These statutes ARE LAW and provide that: 1. There is a Practical Difficulty; 2. The circumstances are Unique to the Property; 3. There is Substantial Justice; 4. The issue was Not Self-Created; 5. Minimum Variance Necessary

Zoning Administrator Statement:
See Attachment #1

Petitioner's Statement: Mike DeNoyer of Allstate Sign explained that they were asked to attend the hearing at the request of Dollar General.

ZBA Members Comments & Questions: Godau: Is there a corporate standard for signs that Dollar General uses? Allstate: This is typical; they have installed several around the region and they have all been about the same as this request.

Engelhardt: Would it be difficult to comply with our ordinance? DeNoyer: No, we could change it. Dollar General doesn't finalize the sign until the permit is issued. Some of the newer designs are different and appear to be a different size due to the look.

Engelhardt: So you don't have a blueprint that will make it very difficult to adjust? DeNoyer: No, we will be able to adjust. Dollar General is just asking for their standard package.

Godau: I am surprised that they haven't considered a monument style as opposed to the pole. Godau then showed several pictures that he had taken of different Dollar Generals around the state.

Bridges: Citing his past experiences with businesses, he explained standards that were developed by his former place of employment.

Godau showed a large sheet of paper which demonstrates the size that is allowed under the current ordinance.

DeNoyer: Said he understands and is in agreement that the sign doesn't need to be the size requested. Mickey DeNoyer commented that when you put things in the air, they get smaller.

Smith: What we are running into is that Dollar General is used to working with smaller communities and is just waiting to see what will be allowed.

Public Comment:
Chair Godau stated that there were about 24 notices sent out and one comment was returned.
Frank & Barb Tragis commented in support of abiding by the ordinance.
McCaslin asked if Allstate could approach Dollar General with the idea of using a monument sign instead of a freestanding one.

Public Hearing Closed by Chair: 7:31 pm

Discussion and Further Questions by ZBA Members:
Smith said that he is not opposed to a monument sign, but they have been approved for a freestanding sign and it is not in our power to change the request.

Public Comment: 7:33 pm
Barb Tragis asked for exactly what size is being requested and it was clarified.

Finding of Fact: The board finalized their finding of facts and turned them in to Chair Godau to compile.

Final Decision: Godau requested a motion from the board. Bridges made the motion to deny the request for variance on both the building sign size and the stand alone sign, and it would be appropriate to follow our ordinance requirements on the sign issue. Swanson seconded.

Godau explained that this motion requires a *yea* or *nay* in support of the motion.

Roll Call Vote:
Godau: **yea**; Swanson: **yea** Bridges: **yea**; Engelhardt: **yea** Smith: **yea**
Motion Passed: 5 Yeas; 0 Nays. Motion passed. Variance is denied.

Adjournment: Bridges moved to adjourn; Swanson seconded. Motion passed with all in favor. Meeting adjourned at 7:57 pm.

Respectfully Submitted,

Cindy Engelhardt, Secretary

Attachment #1

(Zoning Administrator's Report)

Our Zoning requires one wall sign per street frontage is allowed for establishments and the wall signs shall not exceed an area of forty (40) square feet. It also requires one freestanding per street frontage is permitted and the freestanding signs shall not exceed a height of sixteen (16) feet and an area of one-hundred (100) square feet.

The ZBA should grant a variance from the township's zoning laws only after the property in question meets stringent tests described in the zoning ordinance. Only the rarest situations should qualify for relief from the zoning ordinance's requirements because the zoning regulations are ultimately intended to protect the general health, safety and welfare of the township.

Practical Difficulty: Lincoln Township has a set of criteria an applicant must meet to be allowed a Variance. An applicant must meet each of the 5 criteria's for a variance, not 4 or 3, all 5 practical difficulties. Michigan appellate court has held that the Zoning Board of Appeals cannot grant a Variance without substantial evidence of all 5 practical difficulties. The Michigan Court of Appeals has also adopted the following factor, whether compliance with the strict letter of the restrictions governing area, setbacks, frontage, height, bulk or density would unreasonably prevent the owner from using the property for a permitted purpose.

For number one they are asking for nothing more than their typical signage. It might be typical signage but it is in violation of our Zoning Ordinance and offers no practical difficulty. They talk about visibility, we are a small town, and they are the only big store in town.

Number 2, 3, 4, and 5 all talk about height, visibility and the intersection. As the Dollar General is the only store of this type in the area none of these offer a Practical Difficulty.